

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #6	CCRB Case #: 201805929	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/20/2018 9:49 PM	Location of Incident: 28th Precinct stationhouse	Precinct: 28	18 Mo. SOL 1/20/2020	EO SOL 1/20/2020	
Date/Time CV Reported Mon, 07/23/2018 11:02 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/23/2018 11:02 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Moran	02932	947275	030 PCT
2. POM Joseph Fratto	07552	953882	PBMN SU
3. POM Jose Tavaréz	02044	949716	PBMN SU

Officer(s)	Allegation	Investigator Recommendation
A.POM Joseph Fratto	Abuse: Police Officer Joseph Fratto detained § 87(2)(b) [REDACTED]	
B.POM Jose Tavaréz	Abuse: Police Officer Jose Tavaréz detained § 87(2)(b) [REDACTED]	
C.POM Steven Moran	Abuse: Police Officer Steven Moran detained § 87(2)(b) [REDACTED]	

Case Summary

On July 23, 2018, § 87(2)(b) filed this complaint by phone with the CCRB. On July 20, 2018, at approximately 9:49 p.m. § 87(2)(b) was driving his motorcycle when he was stopped at 114th Street and Adam Clayton Powell Boulevard in Manhattan by PO Steven Moran of the 30th Precinct, PO Jose Tavarez, and PO Joseph Fratto of the Patrol Borough Manhattan North Auto Larceny Unit. § 87(2)(b) was handcuffed and detained at the 28th Precinct stationhouse, and his motorcycle transported to the precinct (**Allegations A, B and C: Abuse of Authority –** § 87(2)(g) § 87(2)(b) was released from the stationhouse with a summons for § 87(2)(b) (Board Review 2).

The investigation obtained a cell phone video provided by § 87(2)(b) showing officers placing § 87(2)(b) in handcuffs and into the police vehicle (**Board Review 1**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joseph Fratto detained § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Jose Tavarez detained § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Steven Moran detained § 87(2)(b)

§ 87(2)(g)

It is undisputed that § 87(2)(b) moved from a lane unsafely in violation of NY Vehicle and Traffic Law §1128 (a). § 87(2)(b) was taken to the 28th Precinct stationhouse where he was released with a summons for the violation after approximately one hour.

According to Patrol Guide Procedure 209-01, an officer is authorized to issue a summons instead of arresting the violator of Vehicle and Traffic Law violations (**Board Review 8**). According to Patrol Guide Procedure 208-52, upon arresting a person for violation of traffic regulations, appropriate arrest processing procedures are to be followed (**Board Review 4**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to six CCRB complaints and has been named a victim in 16 allegations (**Board Review 5**).
 - § 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- PO Fratto has been a member of service for six years and this is the first CCRB complaint to which he has been a subject.
- PO Tavarez has been a member of service for eight years and has been a subject in five other complaints involving 10 other allegations, none of which were substantiated. [REDACTED]
- § 87(2)(g) [REDACTED]
- PO Moran has been a member of service for 10 years and has been a subject in seven other CCRB complaints and 12 allegations, of which one has been substantiated.
 - 201608020 involved a substantiated allegation of physical force against PO Moran. The Board recommended formalized training and the NYPD imposed formalized training.
 - § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of December 6, 2018, the Office of the New York City Comptroller has no record of a Notice of Claim being filed in regard to this complaint (**Board Review 6**)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 6

Investigator: _____	Inv. Simon Wang	_____
Signature	Print Title & Name	Date

Squad Leader: _____	_____	_____
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
Signature	Print Title & Name	Date